

1 **SENATE FLOOR VERSION**

2 February 19, 2025

3 COMMITTEE SUBSTITUTE
4 FOR

5 SENATE BILL NO. 524

By: Weaver

6
7 An Act relating to firearms; amending 21 O.S. 2021,
8 Sections 1272, 1277, 1280.1, and 1290.24, as amended
9 by Section 5, Chapter 160, O.S.L. 2023 (21 O.S. Supp.
10 2024, Section 1290.24), which relate to unlawful
11 carry, possession of firearms on school property, and
12 immunity; authorizing concealed carry by certain
13 persons in certain locations; prohibiting certain
14 liability; updating statutory language and
15 references; and providing an effective date.

16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. AMENDATORY 21 O.S. 2021, Section 1272, is
18 amended to read as follows:

19 Section 1272.

20 **UNLAWFUL CARRY**

21 A. Notwithstanding any other provision of law, it shall be
22 unlawful for any person to carry upon or about his or her person, or
23 in a purse or other container belonging to the person, any pistol,
24 revolver, shotgun, or rifle, whether loaded or unloaded, or any
blackjack, loaded cane, hand chain, metal knuckles, or any other

1 offensive weapon, whether such weapon ~~be~~ is concealed or
2 unconcealed~~;~~; except this section shall not prohibit:

3 1. The proper use of guns and knives for self-defense, hunting,
4 fishing, educational~~,~~, or recreational purposes;

5 2. The carrying or use of weapons in a manner otherwise
6 permitted by statute or authorized by the Oklahoma Self-Defense Act;

7 3. The carrying, possession~~,~~, and use of any weapon by a peace
8 officer or other person authorized by law to carry a weapon in the
9 performance of official duties and in compliance with the rules of
10 the employing agency;

11 4. The carrying or use of weapons in a courthouse by a district
12 judge, associate district judge~~,~~, or special district judge within
13 this state, who is in possession of a valid handgun license issued
14 pursuant to the provisions of the Oklahoma Self-Defense Act and
15 whose name appears on a list maintained by the Administrative
16 Director of the Courts;

17 5. The carrying and use of firearms and other weapons provided
18 in this subsection when used for the purpose of living history
19 reenactment. For purposes of this paragraph, "living history
20 reenactment" means depiction of historical characters, scenes,
21 historical life~~,~~, or events for entertainment, education, or
22 historical documentation through the wearing or use of period,
23 historical, antique~~,~~, or vintage clothing, accessories, firearms,
24 weapons, and other implements of the historical period; ~~or~~

1 6. The transporting by vehicle on a public roadway or the
2 carrying of a firearm, concealed or unconcealed, loaded or unloaded,
3 by a person who is twenty-one (21) years of age or older or by a
4 person who is eighteen (18) years of age but not yet twenty-one (21)
5 years of age and the person is a member or veteran of the United
6 States Armed Forces, Reserves, or National Guard or was discharged
7 under honorable conditions from the United States Armed Forces,
8 Reserves, or National Guard, and the person is otherwise not
9 disqualified from the possession or purchase of a firearm under
10 state or federal law and is not carrying the firearm in furtherance
11 of a crime; or

12 7. The concealed carrying of a handgun, by a person described
13 in paragraph 6 of this subsection, at an election day polling place
14 as provided for in Section 3-120 of Title 26 of the Oklahoma
15 Statutes or an in-person absentee voting location during an election
16 being conducted by a state or county election board. Such polling
17 place or voting location shall not include a school unless the
18 person possesses a valid license pursuant to the Oklahoma Self-
19 Defense Act, nor shall it include a courthouse in any instance.

20 Except as provided in subsection B of Section 1283 of this
21 title, a person who has been convicted of any one of the following
22 offenses in this state or a violation of the equivalent law of
23 another state:
24

- a. assault and battery pursuant to the provisions of
Section 644 of this title which caused serious
physical injury to the victim,
- b. aggravated assault and battery pursuant to the
provisions of Section 646 of this title,
- c. assault and battery that qualifies as domestic abuse
as defined in Section 644 of this title,
- d. stalking pursuant to the provisions of Section 1173 of
this title,
- e. a violation of an order issued under the Protection
from Domestic Abuse Act or a domestic abuse protection
order issued by another state, or
- f. a violation relating to illegal drug use or possession
under the provisions of the Uniform Controlled
Dangerous Substances Act,

shall be prohibited from carrying a firearm under the provisions of
this paragraph. Any person who carries a firearm in the manner
provided for in this paragraph shall be prohibited from carrying the
firearm into any of the places prohibited in subsection A of Section
1277 of this title or any other place currently prohibited by law.
Nothing in this section shall modify or otherwise change where a
person may legally carry a firearm.

1 B. Any person convicted of violating the foregoing provision
2 shall be guilty of a misdemeanor punishable as provided in Section
3 1276 of this title.

4 SECTION 2. AMENDATORY 21 O.S. 2021, Section 1277, is
5 amended to read as follows:

6 Section 1277.

7 UNLAWFUL CARRY IN CERTAIN PLACES

8 A. It shall be unlawful for any person, including a person in
9 possession of a valid handgun license issued pursuant to the
10 provisions of the Oklahoma Self-Defense Act, to carry any concealed
11 or unconcealed firearm into any of the following places:

12 1. Any structure, building, or office space which is owned or
13 leased by a city, town, county, state, or federal governmental
14 authority for the purpose of conducting business with the public;

15 2. Any courthouse, courtroom, prison, jail, detention facility,
16 or any facility used to process, hold, or house arrested persons,
17 prisoners, or persons alleged delinquent or adjudicated delinquent,
18 except as provided in Section 21 of Title 57 of the Oklahoma
19 Statutes;

20 3. Any public or private elementary or public or private
21 secondary school, except as provided in subsections C and D of this
22 section;

23 4. Any publicly owned or operated sports arena or venue during
24 a professional sporting event, unless allowed by the event holder;

1 5. Any place where gambling is authorized by law, unless
2 allowed by the property owner;

3 6. Any other place specifically prohibited by law; and

4 7. Any property set aside by a county, city, town, public trust
5 with a county, city, or town as a beneficiary, or state governmental
6 authority for an event that is secured with ~~minimum security~~ minimum
7 security provisions. For purposes of this paragraph, a ~~minimum-~~
8 ~~security~~ minimum security provision consists of a location that is
9 secured utilizing the following:

- 10 a. a metallic-style security fence that is at least eight
11 (8) feet in height that encompasses the property and
12 is secured in such a way as to deter unauthorized
13 entry,
- 14 b. controlled access points staffed by a uniformed,
15 commissioned peace officer, and
- 16 c. a metal detector whereby persons walk or otherwise
17 travel with their property through or by the metal
18 detector.

19 B. It shall be lawful for a person to carry a concealed or
20 unconcealed firearm on the following properties:

21 1. Any property set aside for the use or parking of any
22 vehicle, whether attended or unattended, by a city, town, county,
23 state, or federal governmental authority;

1 2. Any property set aside for the use or parking of any
2 vehicle, whether attended or unattended, which is open to the
3 public, or by any entity engaged in gambling authorized by law;

4 3. Any property adjacent to a structure, building, or office
5 space in which concealed or unconcealed weapons are prohibited by
6 the provisions of this section;

7 4. Any property designated by a city, town, county, or state
8 governmental authority as a park, recreational area, wildlife
9 refuge, wildlife management area, or fairgrounds; provided, nothing
10 in this paragraph shall be construed to authorize any entry by a
11 person in possession of a concealed or unconcealed firearm into any
12 structure, building, office space, or event which is specifically
13 prohibited by the provisions of subsection A of this section;

14 5. Any property set aside by a public or private elementary or
15 secondary school for the use or parking of any vehicle, whether
16 attended or unattended; provided, however, the firearm shall be
17 stored and hidden from view in a locked motor vehicle when the motor
18 vehicle is left unattended on school property; ~~and~~

19 6. Any public property set aside temporarily by a county, city,
20 town, public trust with a county, city, or town as a beneficiary, or
21 state governmental authority for the holder of an event permit that
22 is without ~~minimum-security~~ minimum security provisions, as such
23 term is defined in paragraph 7 of subsection A of this section;
24 provided, the carry of firearms within ~~said~~ the permitted event area

1 shall be limited to concealed carry of a handgun unless otherwise
2 authorized by the holder of the event permit; and

3 7. An election day polling place as provided for in Section 3-
4 120 of Title 26 of the Oklahoma Statutes or an in-person absentee
5 voting location during an election being conducted by a state or
6 county election board by any person described in paragraph 6 of
7 subsection A of Section 1272 of this title, provided the firearm is
8 concealed. Such polling place or voting location shall not include
9 a school unless the person possesses a valid license pursuant to the
10 Oklahoma Self-Defense Act, nor shall it include a courthouse in any
11 instance.

12 Nothing contained in any provision of this subsection or
13 subsection C of this section shall be construed to authorize or
14 allow any person in control of any place described in subsection A
15 of this section to establish any policy or rule that has the effect
16 of prohibiting any person in lawful possession of a handgun license
17 or otherwise in lawful possession of a firearm from carrying or
18 possessing the firearm on the property described in this subsection.

19 C. A concealed or unconcealed weapon may be carried onto
20 private school property or in any school bus or vehicle used by any
21 private school for transportation of students or teachers by a
22 person who is licensed pursuant to the Oklahoma Self-Defense Act,
23 provided a policy has been adopted by the governing entity of the
24 private school that authorizes the carrying and possession of a

1 weapon on private school property or in any school bus or vehicle
2 used by a private school. Except for acts of gross negligence or
3 willful or wanton misconduct, a governing entity of a private school
4 that adopts a policy which authorizes the possession of a weapon on
5 private school property, a school bus, or a vehicle used by the
6 private school shall not be subject to liability for any injuries
7 arising from the adoption of the policy. The provisions of this
8 subsection shall not apply to claims pursuant to the Administrative
9 Workers' Compensation Act.

10 D. ~~Notwithstanding paragraph 3 of subsection A of this section,~~
11 ~~a~~ A board of education of a school district may adopt a policy
12 pursuant to Section 5-149.2 of Title 70 of the Oklahoma Statutes to
13 authorize the carrying of a handgun onto school property by school
14 personnel specifically designated by the board of education,
15 provided such personnel either:

16 1. Possess a valid armed security guard license as provided for
17 in ~~Section 1750.1 et seq. of Title 59 of the Oklahoma Statutes~~ the
18 Oklahoma Security Guard and Private Investigator Act; or

19 2. Hold a valid reserve peace officer certification as provided
20 for in Section 3311 of Title 70 of the Oklahoma Statutes.

21 Nothing in this subsection shall be construed to restrict authority
22 granted elsewhere in law to carry firearms.

1 E. Notwithstanding the provisions of subsection A of this
2 section, on any property designated as a municipal zoo or park of
3 any size that is owned, leased, operated, or managed by:

4 1. A public trust created pursuant to the provisions of Section
5 176 of Title 60 of the Oklahoma Statutes; or

6 2. A nonprofit entity,
7 an individual shall be allowed to carry a concealed handgun but not
8 openly carry a handgun on the property.

9 F. Any person violating the provisions of paragraph 2 or 3 of
10 subsection A of this section shall, upon conviction, be guilty of a
11 misdemeanor punishable by a fine not to exceed Two Hundred Fifty
12 Dollars (\$250.00). A person violating any other provision of
13 subsection A of this section may be denied entrance onto the
14 property or removed from the property. If the person refuses to
15 leave the property and a peace officer is summoned, the person may
16 be issued a citation for an amount not to exceed Two Hundred Fifty
17 Dollars (\$250.00).

18 G. No person in possession of a valid handgun license issued
19 pursuant to the provisions of the Oklahoma Self-Defense Act or who
20 is carrying or in possession of a firearm as otherwise permitted by
21 law or who is carrying or in possession of a machete, blackjack,
22 loaded cane, hand chain, or metal knuckles shall be authorized to
23 carry the firearm, machete, blackjack, loaded cane, hand chain, or
24 metal knuckles into or upon any college, university, or technology

center school property, except as provided in this subsection. For purposes of this subsection, the following property shall not be construed to be college, university, or technology center school property:

1. Any property set aside for the use or parking of any motor vehicle, whether attended or unattended, provided the firearm, machete, blackjack, loaded cane, hand chain, or metal knuckles are carried or stored as required by law and the firearm, machete, blackjack, loaded cane, hand chain, or metal knuckles are not removed from the motor vehicle without the prior consent of the college or university president or technology center school administrator while the vehicle is on any college, university, or technology center school property;

2. Any property authorized for possession or use of firearms, machetes, blackjacks, loaded canes, hand chains, or metal knuckles by college, university, or technology center school policy; and

3. Any property authorized by the written consent of the college or university president or technology center school administrator, provided the written consent is carried with the firearm, machete, blackjack, loaded cane, hand chain, or metal knuckles and the valid handgun license while on college, university, or technology center school property.

The college, university, or technology center school may notify the Oklahoma State Bureau of Investigation within ten (10) days of a

1 violation of any provision of this subsection by a licensee. Upon
2 receipt of a written notification of violation, the Bureau shall
3 give a reasonable notice to the licensee and hold a hearing. At the
4 hearing, upon a determination that the licensee has violated any
5 provision of this subsection, the licensee may be subject to an
6 administrative fine of Two Hundred Fifty Dollars (\$250.00) and may
7 have the handgun license suspended for three (3) months.

8 Nothing contained in any provision of this subsection shall be
9 construed to authorize or allow any college, university, or
10 technology center school to establish any policy or rule that has
11 the effect of prohibiting any person in lawful possession of a
12 handgun license or any person in lawful possession of a firearm,
13 machete, blackjack, loaded cane, hand chain, or metal knuckles from
14 possession of a firearm, machete, blackjack, loaded cane, hand
15 chain, or metal knuckles in places described in paragraphs 1, 2, and
16 3 of this subsection. Nothing contained in any provision of this
17 subsection shall be construed to limit the authority of any college,
18 university, or technology center school in this state from taking
19 administrative action against any student for any violation of any
20 provision of this subsection.

21 H. The provisions of this section shall not apply to the
22 following:

23 1. Any peace officer or any person authorized by law to carry a
24 firearm in the course of employment;

1 2. District judges, associate district judges, and special
2 district judges, who are in possession of a valid handgun license
3 issued pursuant to the provisions of the Oklahoma Self-Defense Act
4 and whose names appear on a list maintained by the Administrative
5 Director of the Courts, when acting in the course and scope of
6 employment within the courthouses of this state;

7 3. Private investigators with a firearms authorization when
8 acting in the course and scope of employment;

9 4. ~~Elected officials~~ An elected official of a county or a
10 county election board secretary, who ~~are~~ is in possession of a valid
11 handgun license issued pursuant to the provisions of the Oklahoma
12 Self-Defense Act, may carry a concealed handgun when acting in the
13 performance of his or her duties within the courthouses of the
14 county in which he or she was elected. The provisions of this
15 paragraph shall not allow the elected county official to carry the
16 handgun into a courtroom;

17 5. The sheriff of any county may authorize certain employees of
18 the county, who possess a valid handgun license issued pursuant to
19 the provisions of the Oklahoma Self-Defense Act, to carry a
20 concealed handgun when acting in the course and scope of employment
21 within the courthouse in the county in which the person is employed.
22 Nothing in the Oklahoma Self-Defense Act shall prohibit the sheriff
23 from requiring additional instruction or training before granting
24 authorization to carry a concealed handgun within the courthouse.

1 The provisions of this paragraph and of paragraph 6 of this
2 subsection shall not allow the county employee to carry the handgun
3 into a courtroom, sheriff's office, adult or juvenile jail, or any
4 other prisoner detention area; and

5 6. The board of county commissioners of any county may
6 authorize certain employees of the county, who possess a valid
7 handgun license issued pursuant to the provisions of the Oklahoma
8 Self-Defense Act, to carry a concealed handgun when acting in the
9 course and scope of employment on county annex facilities or grounds
10 surrounding the county courthouse.

11 I. For the purposes of this section, "motor vehicle" means any
12 automobile, truck, minivan, ~~sports~~ sport utility vehicle, or
13 motorcycle, as defined in Section 1-135 of Title 47 of the Oklahoma
14 Statutes, equipped with a locked accessory container within or
15 affixed to the motorcycle.

16 SECTION 3. AMENDATORY 21 O.S. 2021, Section 1280.1, is
17 amended to read as follows:

18 Section 1280.1.

19 POSSESSION OF FIREARM ON SCHOOL PROPERTY

20 A. It shall be unlawful for any person to have in his or her
21 possession on any public or private school property or while in any
22 school bus or vehicle used by any school for transportation of
23 students or teachers any firearm or weapon designated in Section
24

1 1272 of this title, except as provided in subsection C of this
2 section or as otherwise authorized by law.

3 B. For purposes of this section:

4 1. "School property" means any publicly owned property held for
5 purposes of elementary, secondary, or vocational-technical
6 education, ~~and~~ and shall not include property owned by public school
7 districts or where such property is leased or rented to an
8 individual or corporation and used for purposes other than
9 educational;

10 2. "Private school" means a school that offers a course of
11 instruction for students in one or more grades from prekindergarten
12 through grade twelve and is not operated by a governmental entity;
13 and

14 3. "Motor vehicle" means any automobile, truck, minivan, or
15 ~~sports~~ sport utility vehicle.

16 C. Firearms and weapons are allowed on school property and
17 deemed not in violation of subsection A of this section as follows:

18 1. A gun or knife designed for hunting or fishing purposes kept
19 in a privately owned vehicle and properly displayed or stored as
20 required by law, provided such vehicle containing ~~said~~ the gun or
21 knife is driven onto school property only to transport a student to
22 and from school and such vehicle does not remain unattended on
23 school property;

1 2. A gun or knife used for the purposes of participating in the
2 ~~Oklahoma~~ Department of Wildlife Conservation certified hunter
3 training education course or any other hunting, fishing, safety, or
4 firearms training courses, or a recognized firearms sports event,
5 team shooting program, or competition, or living history
6 reenactment, provided the course or event is approved by the
7 principal or chief administrator of the school where the course or
8 event is offered, and provided the weapon is properly displayed or
9 stored as required by law pending participation in the course,
10 event, program, or competition;

11 3. Weapons in the possession of any peace officer or other
12 person authorized by law to possess a weapon in the performance of
13 his or her duties and responsibilities;

14 4. A concealed or unconcealed weapon carried onto private
15 school property or in any school bus or vehicle used by any private
16 school for transportation of students or teachers by a person who is
17 licensed pursuant to the Oklahoma Self-Defense Act, provided a
18 policy has been adopted by the governing entity of the private
19 school that authorizes the possession of a weapon on private school
20 property or in any school bus or vehicle used by a private school.
21 Except for acts of gross negligence or willful or wanton misconduct,
22 a governing entity of a private school that adopts a policy which
23 authorizes the possession of a weapon on private school property, a
24 school bus, or a vehicle used by the private school shall be immune

1 from liability for any injuries arising from the adoption of the
2 policy. The provisions of this paragraph shall not apply to claims
3 pursuant to the Administrative Workers' Compensation Code Act;

4 5. A gun, knife, bayonet, or other weapon in the possession of
5 a member of a veterans group, the ~~national guard~~ National Guard,
6 active military, the Reserve Officers' Training Corps (ROTC), or
7 Junior ROTC, in order to participate in a ceremony, assembly, or
8 educational program approved by the principal or chief administrator
9 of a school or school district where the ceremony, assembly, or
10 educational program is being held; provided, however, the gun or
11 other weapon that uses projectiles is not loaded and is inoperable
12 at all times while on school property;

13 6. A handgun carried in a motor vehicle pursuant to a valid
14 handgun license authorized by the Oklahoma Self-Defense Act onto
15 property set aside by a public or private elementary or secondary
16 school for the use or parking of any vehicle; provided, however,
17 ~~said the~~ the handgun shall be stored and hidden from view in a locked
18 motor vehicle when the motor vehicle is left unattended on school
19 property; and

20 7. A handgun carried onto public school property by school
21 personnel who have been designated by the board of education,
22 provided such personnel either:

23 a. possess a valid armed security guard license as

24 provided for in ~~Section 1750.1 et seq. of Title 59 of~~

1 ~~the Oklahoma Statutes~~ the Oklahoma Security Guard and
2 Private Investigator Act, or

3 b. hold a valid reserve peace officer certification as
4 provided for in Section 3311 of Title 70 of the
5 Oklahoma Statutes,

6 if a policy has been adopted by the board of education of the school
7 district that authorizes the carrying of a handgun onto public
8 school property by such personnel; and

9 8. The carry of a concealed handgun by a person described in
10 paragraph 6 of subsection A of Section 1272 of this title who
11 possesses a valid license pursuant to the Oklahoma Self-Defense Act
12 at an election day polling place as provided for in Section 3-120 of
13 Title 26 of the Oklahoma Statutes or an in-person absentee voting
14 location during an election being conducted by a state or county
15 election board.

16 Nothing in this subsection shall be construed to restrict
17 authority granted elsewhere in law to carry firearms.

18 D. Any person violating the provisions of this section shall,
19 upon conviction, be guilty of a misdemeanor punishable by a fine of
20 not to exceed Two Hundred Fifty Dollars (\$250.00).

21 SECTION 4. AMENDATORY 21 O.S. 2021, Section 1290.24, as
22 amended by Section 5, Chapter 160, O.S.L. 2023 (21 O.S. Supp. 2024,
23 Section 1290.24), is amended to read as follows:

24 Section 1290.24.

1 IMMUNITY

2 A. The state or any political subdivision of ~~the state~~ this
3 state, as defined in Section 152 of Title 51 of the Oklahoma
4 Statutes, and its officers, agents, and employees shall be immune
5 from and not subject to liability resulting or arising from:

6 1. Failure to prevent the licensing of an individual for whom
7 the receipt of the license is unlawful pursuant to the provisions of
8 the Oklahoma Self-Defense Act or any other provision of law of this
9 state;

10 2. Any action or misconduct with a firearm committed by a
11 person pursuant to the provisions of the Oklahoma Self-Defense Act
12 or by any person who obtains a firearm;

13 3. Any injury to any person during a firearm training course
14 conducted by a firearms instructor certified by the Council on Law
15 Enforcement Education and Training to conduct training under the
16 Oklahoma Self-Defense Act, or injury from any misfire or malfunction
17 of any firearm on a training course firing range supervised by a
18 certified firearms instructor under the provisions of the Oklahoma
19 Self-Defense Act, or any injury resulting from carrying a concealed
20 or unconcealed firearm pursuant to any firearms training; ~~and~~

21 4. Any action or finding pursuant to a hearing conducted in
22 accordance with the Administrative Procedures Act as required in the
23 Oklahoma Self-Defense Act; and
24

1 5. Any action or misconduct with a firearm committed by a
2 person at an election day polling place as provided for in Section
3 3-120 of Title 26 of the Oklahoma Statutes or an in-person absentee
4 voting location during an election being conducted by a state or
5 county election board.

6 B. Firearms instructors certified by the Council on Law
7 Enforcement Education and Training to conduct training for the
8 Oklahoma Self-Defense Act shall be immune from and not subject to
9 liability to third persons resulting or arising from any claim based
10 on an act or omission of a trainee.

11 C. The provisions of this subsection shall not apply to claims
12 pursuant to the Administrative Workers' Compensation Act.

13 SECTION 5. This act shall become effective November 1, 2025.

14 COMMITTEE REPORT BY: COMMITTEE ON PUBLIC SAFETY
15 February 19, 2025 - DO PASS AS AMENDED BY CS
16
17
18
19
20
21
22
23
24